

TENTATIVE RULINGS

FOR: August 11, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

In The Matter of The Marie Davis Supplemental Needs Trust

25PR000064

PETITION FOR APPROVAL OF GUARDIAN AD LITEM FEES AND COSTS

TENTATIVE RULING: The Matter is CONTINUED to September 15, 2026, at 8:30 a.m. in Dept. A. There is, in the Court’s file, no proof of service of the Petition or Notice of Hearing on those listed in the Petition as entitled to such notice. “The court lacks jurisdiction to

rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

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Estate of Connie Ann Alric

25PR000148

FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION TO ATTORNEYS FOR ORDINARY SERVICES, FOR A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Adele Ann Casten

25PR000290

[1] PETITION HEARING FOR INSTRUCTIONS REGARDING THE VALIDITY OF ADELE CASTEN’S APRIL 19, 2019 AND MAY 3, 2019 WILLS

TENTATIVE RULING: The Court finds from the facts presented in the Petition that the presumption of fraud or undue influence arising under Probate Code section 21380 applies to the Last Will and Testament of Adele Casten dated May 3, 2019, and lodged with the Court on May 19, 2026 (May 3, 2019, Will). However, the Court finds, in the matters set forth in the Statement of Facts filed August 3, 2026, by Claire Fahlstrom, “clear and convincing evidence, that the donative transfer was not the product of fraud or undue influence.” (Prob. Code, § 21380, subd. (b).)

Based on the foregoing, the Court finds good cause for ruling that the May 3, 2019, Will is a valid testamentary instrument. Moreover, the Court is prepared, on the same grounds, to find MOOT the request to determine the validity of the Last Will and Testament of Adele Casten dated April 19, 2019. However, all interested parties have the right to appear and object to the Petition orally or in writing at the hearing. (See Prob. Code § 1043.) Also, if any interested party appears to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing,” the Court is required to grant a continuance (Prob. Code, § 852.)

[2] AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

APPEARANCE REQUIRED.

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